

adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/6/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Alarcon, Sr. v. Monroe et al.***
Superior Court Case No. 18CECG00898

Hearing Date: May 7, 2026 (Dept. 501)

Motion: by Plaintiff for Reconsideration

Tentative Ruling:

To deny.

If oral argument is timely requested, such argument will be entertained on Tuesday, May 12, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff Frank Alarcon, Sr., by and through his Successor-in-Interest Frank Alarcon, Jr. ("plaintiff") seeks reconsideration of a prior order granting summary judgment pursuant only to Code of Civil Procedure section 1008. Code of Civil Procedure section 1008 states, in pertinent part:

When an application for an order has been made to a judge, or to a court, and ... granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based on new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Code Civ. Proc. § 1008, subd. (a), emphasis added.)

Section 1008 further states that "[t]he party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*)

Facts which the party seeking reconsideration was aware of at the time of the original ruling are not new, or different. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690.) To otherwise seek reconsideration based on new facts, the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time. (*Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) Some courts have summarized the above as a required showing of "changed circumstances" (see *Wilson v. Science Applications Int'l Corp.* (1997) 52 Cal.App.4th 1025, 1033), i.e., information that the moving party could not, with reasonable diligence, have discovered or previously produced (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213).

Plaintiff fails to demonstrate any basis for reconsideration. None of the evidence submitted in support of the motion, which consisted only of two statements to attach

exhibits, demonstrates new or different facts, circumstances or law, to reconsider the prior order. (See *generally* Moving Papers.) Moreover, at issue was plaintiff's desire to make oral arguments. On the face of that relief sought, there are no discernable new facts or changed circumstances that would support reconsideration. Accordingly, the motion for reconsideration is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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